

25PSCV00111 25PSCV00111

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Case Number: 25PSCV00111 Hearing Date: August 12, 2026 Dept: H

Ramirez v. Amazon

Logistics Inc., et al.,

Case No. 25PSCV00111

ORDER ON MOTION

FOR ALTERNATIVE SERVICE OF PROCESS

Plaintiff

Pedro Ramirez's Motion for Alternative Service of Process is DENIED without prejudice.

Background

Plaintiff

Pedro Ramirez ("Plaintiff") alleges as follows: On January 14, 2023, Plaintiff's vehicle was struck by Defendant Yesenia C. Munguia ("Munguia"), who was operating the work vehicle for Defendants Amazon Logistics Inc. ("Amazon") and Metro Deliveries & Logistics LLC ("Metro"). Plaintiff further alleges that Munguia failed to yield the right of way while attempting to make a left or U-turn, leading to the collision.

On

May 2, 2025, Plaintiff filed an amended motor vehicle complaint, asserting causes of action against Munguia, Amazon, Metro, and Does 1-50 for: (1) General Negligence; and (2) Motor Vehicle.

A

Case Management Conference is set for August 31, 2026.

Legal
Standard

Code of Civil Procedure

Section 413.30 provides in part:

“(a) (1) If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.

(2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.”

(Code Civ. Proc., §
413.30(a).)

Discussion

Plaintiff

moves the Court for an order permitting alternative service of process upon Munguia.

Plaintiff alleges that he has been unable to serve Munguia through authorized methods. (Mot., at p. 3.) Plaintiff submits a declaration of reasonable diligence attesting to two attempts (Feb. 26 & March 3, 2025) at service at the same address. (Mot., Exh. A.) However, Plaintiff states he has made 10 service attempts upon Munguia in the motion. (Mot., at p. 3.) Plaintiff further alleges that a search was conducted for Munguia’s most recent address, but the resident at 960 Stichman Ave, Basset, CA 91746 stated that Munguia did not reside there. (Mot., at p. 4.) Plaintiff requests leave to serve Munguia by publication, certified mail, email, or any other method the Court would deem appropriate.

Plaintiff's application contains the same defects as his previous one: (1) the motion is not accompanied with a supporting declaration; and (2) the Declaration of Reasonable Diligence attached to the motion only addresses the February 26 and March 2, 2025 service attempts and lacks information regarding the September 14, 17, 20, 23, 25, 28, and 30, 2025 and May 19, 2026 alleged attempts. Plaintiff's motion is almost identical to the previous application that was denied sans the addition of the 10th attempt. Thus, as previously stated, the Court is not satisfied, based upon the information presented, that Munguia cannot be served with the summons and complaint in a manner provided for pursuant to Code.

The motion, then, is denied without prejudice.

Plaintiff is directed to submit any future request to serve Munguia by alternative means by filing an application, rather than a noticed motion. Moreover, while the Superior Court of Los Angeles County (SCLAC) forms are only optional, in any future application, Plaintiff is directed review the Application for Publication (SCLAC LACIV 108) and the Order for Publication (SCLAC LACIV 145) and either use those forms or include all the information requested in those forms.